

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Joseph Hennessy	Team: Squad #05	CCRB Case #: 202102950	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 05/15/2021 9:27 PM	Location of Incident: Lexington Avenue/63rd Street Subway on the Q line platform	18 Mo. SOL 11/15/2022	Precinct: 19		
Date/Time CV Reported Sat, 05/15/2021 10:02 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sat, 05/15/2021 10:02 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Alberto Leonardo	11284	956837	TB ATU
2. PO Vincent Palumbo	08223	956149	TB ATU
3. PO Lekhrum Gobind	17072	957632	TB ATU

Officer(s)	Allegation	Investigator Recommendation
A . PO Vincent Palumbo	Abuse: Police Officer Vincent Palumbo stopped an individual.	A . Unsubstantiated
B . POM Alberto Leonardo	Abuse: Police Officer Alberto Leonardo stopped an individual.	B . Unsubstantiated
C . PO Lekhrum Gobind	Abuse: Police Officer Lekhrum Gobind stopped an individual.	C . Unsubstantiated
D . POM Alberto Leonardo	Force: Police Officer Alberto Leonardo used physical force against an individual.	D . Unsubstantiated
E . PO Vincent Palumbo	Force: Police Officer Vincent Palumbo used physical force against an individual.	E . Unsubstantiated
F . PO Lekhrum Gobind	Force: Police Officer Lekhrum Gobind used physical force against an individual.	F . Unsubstantiated
G . POM Alberto Leonardo	Discourtesy: Police Officer Alberto Leonardo spoke discourteously to an individual.	G . Substantiated
H . POM Alberto Leonardo	Abuse: Police Officer Alberto Leonardo threatened to arrest an individual.	H . Unsubstantiated
I . POM Alberto Leonardo	Discourtesy: Police Officer Alberto Leonardo spoke discourteously to an individual.	I . Substantiated
J . POM Alberto Leonardo	Discourtesy: Police Officer Alberto Leonardo spoke discourteously to an individual.	J . Substantiated

Case Summary

On May 17, 2021, § 87(2)(b) filed this complaint via the CCRB website on behalf of an unidentified individual.

On May 15, 2021, at approximately 9:30 PM, § 87(2)(b) was riding the Q train northbound when Officer Lekhram Gobind, Officer Vincent Palumbo and Officer Alberto Leonardo boarded the train at 57th Street. Officers Gobind, Palumbo, and Leonardo briefly spoke with a black male individual before ordering him to exit the train at the 63rd Street subway station (**Allegation A: Abuse of Authority, Unsubstantiated**) (**Allegation B: Abuse of Authority, Unsubstantiated**) (**Allegation C: Abuse of Authority, Unsubstantiated**). The individual refused, and Officers Leonardo, Gobind and Palumbo used physical force to remove him from the train at the 63rd Street station (**Allegation D: Force, Unsubstantiated**) (**Allegation E: Force, Unsubstantiated**) (**Allegation F: Force, Unsubstantiated**). Officer Leonardo said to the unidentified individual, “You’re too old for this shit” (**Allegation G: Discourtesy, Substantiated**). Officer Leonardo said to the individual, “You want to go in the slammer?” (**Allegation H: Abuse of Authority, Exonerated**). Officer Leonardo said to the individual, “Next time you don’t fuck with three officers. Just shut your fucking mouth, and you keep it good.” (**Allegation I: Discourtesy, Substantiated**). Officer Leonardo said to the individual, “I’m not taking you to fucking jail.” (**Allegation J: Discourtesy, Substantiated**). The individual was ejected from the subway. No summonses were issued, and no arrests were made.

The investigation obtained BWC footage from Officers Palumbo, Gobind and Leonardo (BR01, BR02 and BR03 respectively, summarized in BR04). § 87(2)(b) provided the investigation with a video that she recorded during the incident (BR05, summarized in BR06).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Vincent Palumbo stopped an individual.
Allegation (B) Abuse of Authority: Police Officer Alberto Leonardo stopped an individual.
Allegation (C) Abuse of Authority: Police Officer Lekhram Gobind stopped an individual.

§ 87(2)(b) was interviewed by the CCRB on May 24, 2021 (BR07). On May 15, 2021, at approximately 9:27 PM, § 87(2)(b) was riding the uptown Q train in Manhattan. A black male, the victim in this complaint, asked § 87(2)(b) if she wanted to sit next to him. § 87(2)(b) said, “No thank you.” At the times square stop three officers, identified by the investigation as Officer Gobind, Officer Palumbo and Officer Leonardo, boarded the train. All three officers began speaking with the individual about salaries. Shortly before the train arrived at the Lexington Avenue and 63rd Street stop, the individual made a remark that § 87(2)(b) perceived to be sexist and crass. § 87(2)(b) could not, at the time of her CCRB interview, remember what the remark was. The individual was sitting still when he made this remark. § 87(2)(b) did not know if she was looking at the individual or the officers, but she was aware of them and was less than a meter and a half from them and had an ear to their conversation. One or more officers grabbed the individual by his neck or the clothes near his neck and lifted him to his feet. § 87(2)(b) was not able to say which officer did this. One or more officers gained control of the individual’s arms, but § 87(2)(b) was not able to say how officers accomplished this. One or more officers pushed the individual towards the open door of the subway. One or more officers pushed the individual off the subway and against a pillar on the subway platform. § 87(2)(b) stated in her CCRB interview that the individual was vocalizing confusion and pain but could not further describe these sounds. § 87(2)(b) believed that an officer removed handcuffs from his

person but could not say for certain. The subway doors closed, and the train pulled out of the station, preventing § 87(2)(b) from seeing the remainder of the interaction.

The unidentified individual was not arrested nor was he issued a summons by officers as a result of this incident. Officers Palumbo, Leonardo and Gobind did not record the name of the individual in their memo books (BR13, BR09 and BR11 respectively), and Officer Leonardo did not record the individual's name in the Transit Ejection Report that he prepared for the incident (BR14). Neither the BWC footage that depicted the incident nor the footage provided by § 87(2)(b) depicted any identifying information for the individual. A search of the CCRB's Complaint Tracking System (CTS) for complaints with an incident date of May 15, 2021 that occurred in Manhattan yielded no duplicate complaints (BR25).

Officer Leonardo's memo book entry regarding this incident notes that an individual was ejected at 9:30 PM on May 15, 2021, at "Lex and 63rd," and contains the notation: "Disorderly drunk EDP [emotionally disturbed person]." (BR09)

Officer Leonardo was interviewed by the CCRB (BR08). On May 15, 2021, at approximately 9:30 PM, Officer Leonardo, Officer Gobind, and Officer Palumbo boarded a "semi-crowded" northbound Q train at 57th Street. An unidentified individual asked Officer Palumbo how much money he made in a year, which made Officer Leonardo aware of the individual. Officer Palumbo spoke with the individual about his salary. Officer Leonardo did not remember exactly what the individual said in response, except that he repeatedly said, "Fuck," and called Officer Palumbo an idiot. Officer Leonardo said that the individual's voice was very elevated. Officer Leonardo believed that other passengers on the train were startled because they looked over at the individual. Officer Leonardo verbally warned the individual that he needed to stop cursing and be respectful; the individual continued to say, "Fuck," and "Fuck the women." Officer Leonardo said to the individual that he needed to get off the train at the next station. The individual stated that he was planning on departing the train at the next stop. The individual, who was seated, stood up when the train arrived at the next stop, the 63rd Street station. The individual then sat back down. Officer Leonardo said to the individual that he needed to exit the train. Officer Leonardo stated that he said this because the individual was cursing and yelling, which Officer Leonardo described as disorderly conduct. Officer Leonardo believed that he was acting disorderly because he was "belligerent" and "uncooperative." The individual refused. Officer Leonardo then made the decision to remove the individual from the train. Officer Leonardo grabbed the individual's left arm. Officer Palumbo grabbed the individual on his right arm. Officer Gobind held the subway door open. Officer Leonardo and Officer Palumbo moved the individual off the train and onto the platform, where Officer Leonardo placed handcuffs on the individual. Either Officer Palumbo or Officer Gobind held onto the individuals' arms while Officer Leonardo handcuffed him, while the other stood next to them without physically interacting with the individual. Officers then walked the individual up several sets of escalators before releasing him outside of the subway station without arresting him or issuing him a summons. Officer Leonardo believed that the civilian was drunk because he smelled strongly of alcohol during the interaction and when one of the officers grabbed the civilian, he saw that the civilian had an open container of alcohol in his shopping bag. Officer Leonardo did not remember which officer this was. The bag was a shopping bag. Officer Leonardo did not know what type of alcohol it was, but was certain that it was alcohol. Officer Leonardo determined the civilian to be an emotionally disturbed person because once the civilian was taken off the train, the civilian kept on asking what he did, which suggested to Officer Leonardo that the civilian did not understand what was wrong with him cursing on the train.

Officer Gobind was interviewed by the CCRB (BR10). Other than subsequently indicated in this

paragraph, Officer Gobind's statement was consistent with Officer Leonardo's. While Officer Gobind remembered that the individual cursed at Officer Palumbo, he did not remember what the individual specifically said. When the individual started speaking with Officer Palumbo, Officer Gobind saw that the individual's eyes were red, which made him suspect that the individual might be drunk. While the individual was being removed from the train, Officer Gobind held onto the individual's left arm and "walked" the individual off the train. Officer Gobind held onto the individual's arms while Officer Leonardo handcuffed him. Officer Gobind told the individual that he was ejected from the train because he was intoxicated and disorderly. Officer Gobind did not know who made the decision to remove the individual from the train. Officer Gobind stated that the individual could have been arrested for disorderly conduct. Specifically, he could have been arrested for cursing and causing public alarm. Officer Gobind smelled alcohol on the individual's breath when officers physically removed him from the train. This and the individual's red eyes were the factors that made Officer Gobind believe that the individual was drunk.

Officer Gobind's memo book entry regarding this incident reads, "Detrain @63 street and lexington for discon intoxic 91 ejection m/b." (BR11).

Officer Palumbo was interviewed by the CCRB (BR12). Other than subsequently indicated in this paragraph, Officer Palumbo's statement was consistent with Officer Leonardo's. Officer Palumbo knew that the individual was cursing but did not remember specifically what he said. Officer Palumbo stated that all three officers made the decision to remove the individual from the train. The factors that led to his removal were his screaming curses and rapid physical movement. These verbal and physical actions made Officer Palumbo believe that the individual might be verbally or physically confrontational with passengers. Officer Palumbo stated that screaming and cursing qualify as disorderly conduct.

Officer Palumbo's memo book entry is consistent with Officer Leonardo's (BR13). Officer Palumbo recorded the comment, "Discon intox m/b" which he clarified in his CCRB interview meant "disorderly conduct, intoxicated male/black."

A Transit Ejection Report completed by Officer Leonardo was obtained by the investigation (BR14). Under the reason for ejection, Officer Leonardo wrote, "Other – Acting disorderly." Officer Leonardo did not select the prewritten option "Open Alcohol."

BWC footage was recorded by Officers Palumbo, Gobind, and Leonardo (BR01 through BR03, respectively). The BWC footage of Officer Gobind and Officer Palumbo starts a few seconds before the unidentified individual is removed from the subway car; the BWC footage of Officer Leonardo starts 30 seconds before the unidentified individual is removed from the subway. Officer Leonardo's BWC footage shows Officer Leonardo speak with the individual on a subway train. At 00m20 seconds to 00m30 seconds in Officer Leonardo's BWC footage, three passengers appear to be looking at the officers and the individual. Officer Leonardo gestures towards the civilian and appears to speak with him. The individual is gesturing with his arms and appears to speak as well. The individual sits down and Officer Leonardo holds his wrist and pulls the individual off his seat. Officer Leonardo's BWC's is obscured by the body of the individual until officers and the individual are off of the subway platform. Audio is not recorded for this portion of the interaction.

At 00m00 seconds into Officer Gobind's BWC footage, the unidentified individual is holding a semi-transparent / white plastic bag in his right hand. Visible through the bag is what appears to be a roughly half-pint bottle of clear liquor. At 03m34 seconds into Officer Gobind's footage, while officers are escorting the individual up an escalator, visible through the plastic bag is a clear bottle labeled "Smirnoff." The cap appears to be on the bottle. The bag is being held by the individual in

one of his handcuffed hands. Officer Palumbo and Officer Gobind's BWC videos are consistent with Officer Leonardo's.

Officer Leonardo's BWC footage shows that at 02m00 seconds, the unidentified individual says, "What I do? Tell me what I do." and Officer Leonardo says, "Very disrespectful, you're dis-con." At 2m40 seconds, the individual again asks what he did, and Officer Leonardo says, "You were disrespectful in front of everybody, and disorderly. That's why." At 03m35 seconds, Officer Leonardo says, "Your mouth got you in trouble." At 05m36 seconds, Officer Palumbo says, "You were dangerous, we didn't feel safe, so we put you in cuffs." At 05m50 seconds, Officer Palumbo says, "You were yelling and getting in our face, so we got nervous and put you in cuffs." At 06m30 seconds, PO Leonardo says to the unidentified individual, "Cursing. You said fuck to everybody." The individual says, "I said fuck you?" Officer Leonardo says, "Yes." The individual says, "So what?"

§ 87(2)(b) provided a video to the investigation (BR05). The footage depicts the individual standing in front of a metal column on a subway platform and does not depict any of what occurred when the individual was still on the subway train. Three NYPD officers move their arms around the individual's waist area. The individual says, "Just tell me what I do." The subway door closes. The officers' bodies obscure the individual, so the exact nature of their physical contact with the individual is not clear.

The investigation requested and obtained from the MTA video footage of the 63rd Street station for the date and time of the incident (BR15). While the video files depict the platform and other areas of the subway station, none of the files depict any element of the interaction.

A person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof: [they] engage in fighting or in violent, tumultuous or threatening behavior; or [they] make unreasonable noise; or in a public place, [they] use abusive or obscene language. New York Penal Code § 240.20 (BR16).

No person on or in any facility or conveyance shall: drink any alcoholic beverage or possess any opened or unsealed container of alcoholic beverage, enter or remain in any facility or conveyance while their ability to function safely in the environment of the transit system is impaired by the consumption of alcohol or by the taking of any drugs, or conduct themselves in any manner which may cause or tend to cause annoyance, alarm or inconvenience to a reasonable person or create a breach of the peace. MTA Code of Conduct § 1050.7 (BR17).

§ 87(2)(b) stated that she heard the individual make a statement that she deemed to be sexist, and Officers Palumbo, Gobind and Leonardo stated that the individual shouted curses while on the train. However, as the unidentified individual's statement was not captured on video footage and because § 87(2)(b) did not remember the remark, § 87(2)(g)

§ 87(2)(b) stated that she was not intently focused on the interaction between officers and the individual and did not know if she was actually watching the interaction unfold. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

BWC footage shows that the individual was in possession of a bottle of vodka, but the depicted bottle appeared to be sealed. § 87(2)(g)

§ 87(2)(g)

Officer Leonardo's BWC footage shows three people periodically looking in the direction of officers and the individual, however the attention that they are paying to the interaction does not clearly indicate inconvenience, annoyance, or alarm. Further, because there is no audio in this portion of the incident, it is unclear whether their attention was drawn to the area because of the unidentified individual's behavior, because the officers are speaking with the individual, or for some other reason. § 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation A**, **Allegation B**, and **Allegation C** be closed as **unsubstantiated**.

Allegation (D) Force: Police Officer Alberto Leonardo used physical force against an individual.

Allegation (E) Force: Police Officer Vincent Palumbo used physical force against an individual.

Allegation (F) Force: Police Officer Lekhram Gobind used physical force against an individual.

As discussed in the discussion of Allegations A-C, all officers stated that they physically removed the unidentified individual from the train. BWC footage depicts Officer Leonardo pull the unidentified individual by the wrist to remove him from the train, but no other physical actions can be seen in the video footage. The unidentified individual was not arrested or issued a summons and was only removed from the subway. § 87(2)(g)

In the testimony discussed under the discussion of Allegations A-C, all three officers concur that verbal commands were issued to the unidentified individual, which he refused to obey, before any physical contact was made with the individual. Officer Gobind stated that he held onto the

fucking mouth, and you keep it good.” Officer Leonardo said this because of all the cursing that the individual said on the train and because if the individual had not said the things that he said then he would not have been kicked off the train. Officer Leonardo stated that it was a very stressful situation and that it was very hot and humid. Officer Leonardo was shown footage from 05m28s to 05m35s. Officer Leonardo stated that he did say, “I’m not taking you to fucking jail.” Officer Leonardo stated this because the individual had asked if he was being taken to jail. When asked why he used the word “fucking” Officer Leonardo stated that it just came out and that he is human. Officer Leonardo also stated that the individual was very belligerent on the train and that it “boiled his blood.”

Patrol Guide Procedure 200-02 requires officers to “render [their] services with courtesy and civility.” (BR18)

In DAO-DCT Case Number 2017-17276 (BR19) the court held that language that would ordinarily be inappropriate in dealing with individuals may be excused in the course of a physical confrontation with a civilian who offered determined resistance to arrest.

§ 87(2)(g)

It is therefore recommended that **Allegation G, Allegation I, and Allegation J** be closed as **Substantiated**.

Allegation (H) Abuse of Authority: Police Officer Alberto Leonardo threatened to arrest an individual.

As noted in the discussion of Allegations A-C, BWC footage captures Officer Leonardo threatening to arrest the individual on the subway platform after the individual had been removed from the train and handcuffed.

Officer Leonardo was shown his BWC footage from the date of the incident (BR03). Officer Leonardo was shown footage from 01m40s to 02m05s. Officer Leonardo stated that he did say, “You want to go in the slammer?” after the individual had been removed from the train. Officer Leonardo stated that he said this because the individual was not cooperative and was speaking belligerently. Officer Leonardo stated that the individual could have been arrested for his behavior for disorderly conduct.

§ 87(2)(g)

As such, it is recommended that **Allegation H** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR20).

- Officer Leonardo has been a member-of-service for seven years and this is the first CCRB complaint to which he has been a subject.
- Officer Gobind has been a member-of-service for six years and this is the first CCRB complaint to which he has been a subject.
- Officer Palumbo has been a member of service for seven years and has been a subject in two CCRB complaints and three allegations, none of which were substantiated. § 87(2)(g)

§ 87(2)(g)

Mediation, Civil, and Criminal Histories

- Due to a mediation moratorium, mediation was not offered to § 87(2)(b)
- On April 11, 2022, a request was sent to the New York City Office of the Comptroller for any Notices of Claim submitted in regards to this complaint. The results will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 12

Investigator: Joseph Hennessy Investigator Joseph Hennessy April 15, 2022
Signature Print Title & Name Date

Squad Leader: Carlmais Johnson IM Carlmais Johnson June 2, 2022
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date